

24NNCV02967 24NNCV02967

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Case Number: 24NNCV02967 Hearing Date: July 10, 2026 Dept: T

Rachel Wolf v.

Carmi V. Gallo

Motions to Compel

Initial Responses to Discovery and Motion to Compel Further Discovery

Moving Party: Plaintiff

Rachel Wolf

Responding Party: Unopposed

(Defendant Carmi V. Gallo)

Tentative Ruling: Granted

in part; Granted in part; Denied

Motion to

Compel Initial Responses to Special Interrogatories

Plaintiff served Defendant with

Special Interrogatories, Set Four, on February 10, 2026, On April 1, 2026,

Defendant served responses that contained the following affirmation: "I declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge and privacy." Plaintiff filed a motion to

compel contending that the failure to properly verify the responses was tantamount to providing no responses at all.

The Court agrees that the attempted verification was defective. However, as was noted by the Court in *Katayama v. Continental Investment Group* (2024) 105 Cal.App.5th 898, 910, an alternative to categorically rejecting a proposed response is the Court

allowing a party to provide a properly worded verification within a reasonable time. As such, the Court orders Defendant to provide a code compliance verification within 15 days. To the extent that Plaintiff wishes to file a compel further responses, the 45-day time period will run from the date of service of the verification.

In light of this ruling, the Court finds that the imposition of sanctions at this time would be unjust and denies Plaintiffs request.

Motion to Compel Initial Responses to Request for Production

Plaintiff served Defendant with Plaintiff's Request for Production of Documents or Things, Set Six, on September 2, 2025. Defendant filed with the Court, but did not serve, a document entitled "Objection to Re-Do Sets 1 – 6 (Set Six)". The filing included a copy of the request for production with handwritten commentary from Defendant. Even giving Defendant the latitude afforded pro per litigants, the Court cannot find that filed document represented code compliant, verified responses in proper form and likewise cannot find that the filing constituted an objection to the request. Further, there is no evidence that the document was served on Plaintiff. As such, the Court finds that Defendant did not respond to Request for Production of Documents or Things, Set Six.

Plaintiff filed a motion to compel, and Defendant has not filed an opposition. As such, the motion to compel an initial response is granted.

Sanctions

Defendant requests sanctions in the amount of \$60.00 for reasonable expenses relating to the copying and service of the motions and transportation. Although these expenses are not fully documented, the Court finds them reasonable.

Defendant also requests \$1,000.00 in sanctions under Code of Civil Procedure §§ 2023.050(a) and 2023.050(c). While the history of this matter might support a finding of willful indifference to, or even intentional disruption of,

the discovery process, the Court finds that Defendant has limited resources, limited understanding of the litigation and discovery process, and is completely overwhelmed. To the extent that she has objectively and repeatedly failed to meet her discovery obligations, the Court believes that Defendant has done the best she can under the circumstances. As such, based on the totality of circumstances, the Court finds Plaintiff has not overcome the rebuttable presumption of good faith under Code of Civil Procedure § 2023.050(e). As such, the request for additional sanctions of \$1,000.00 is denied.

Motion to Further Responses

Plaintiff served Defendant with Request for Production of Documents or Things, Set Seven, on March 9, 2026.

Defendant served responses on April 11, 2026. After unsuccessful meet and confer efforts regarding further responses, Plaintiff timely filed a motion to compel. No opposition was filed.

Code of Civil Procedure § 2031.310(b)(1) requires that a motion to compel further responses "shall set forth specific facts showing good cause justifying the discovery sought by the demand." To establish "good cause," the burden is on the moving party to show: (1) relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case); and (2) specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). *Glenfed Develop. Corp. v. Sup.Ct.* (1997) 53 Cal.App.4th 1113, 1117. Declarations containing specific facts supporting a finding of "good cause" are generally required. *Fireman's Fund Ins. Co. v. Sup.Ct.* (1991) 233 Cal.App.3d 1138, 1141.

Here, the Court does not find good cause to compel further responses. Requests 90 through 97 related to Eugene Ehmann, who wrote a character letter in support of Defendant on January 19, 2026. As a general rule, character evidence is inadmissible. Evidence Code § 1101. Consequently, in order to be discoverable, any communications with Mr. Ehmann must be relevant or reasonably calculated to lead to the discovery of admissible evidence. There is nothing in the letter to suggest that Mr. Ehmann witnessed any of the events that give

rise to Plaintiff's claims. While Mr.

Ehmann stated in the letter that he's been familiar with the court case since its onset, Plaintiff made no effort to establish how any communications with Mr. Ehmann would tend to prove or disprove some issue in the case.

Similarly, Plaintiff makes no effort to establish the relevance of any of the remaining requests for production:

Request 98 and 99 (relating to a Target Protest in January, 2026);

Requests 100 – 102 (relating to a day timer, files and guest agreements referenced by Ms. Gallo during a deposition in an unrelated case), Requests 103 – 105 (relating to Plaintiff's Twitter posts), and Request 106 (relating to Antonia Roman, who is unknown to the Court).

Based on the foregoing, the Court finds that Plaintiff has failed to establish good cause to compel further responses to Plaintiff's Request for Production of Documents or Things, Set Seven.

RULING

Plaintiff's Motion to Compel Responses to Plaintiff's Special Interrogatories, Set Four, is GRANTED IN PART. Defendant to provide a code compliance verification within 15 days.

To the extent that Plaintiff wishes to file a compel further responses, the 45-day time period to do so will run from the date of service of the verification. Plaintiff's request for sanctions is DENIED.

Plaintiff's Motion to Compel Responses to Plaintiff's Request for Production of Documents or Things, Set Six, is GRANTED. Defendant is ordered to provide code-compliant, responses without objections, without personal attacks, and without commentary, within 30 days.

Plaintiff's request for sanctions in the amount of \$60 is GRANTED. Defendant is ordered to pay sanctions of \$60.00 to Plaintiff within 30 days of this order. Plaintiff's request for additional sanctions under Code of Civil Procedure §§ 2023.050(a) and 2023.050(c) is DENIED.

The Court DENIES Plaintiff's Motion to Compel Further Responses to Plaintiff's Request for Production of Documents or Things, Set Seven.

The Court again cautions Defendant that further failures to comply with this Court's discovery orders may result in evidentiary or issues sanctions. The Court also cautions Plaintiff that any additional written discovery should be limited to seeking information that is relevant or reasonably likely to lead to the discovery of admissible evidence.